made to the electorate. ‘It is not good for us to say,’ he argued, ‘[that] we are helpless before fate and the situation we have to face at present.’[43] In sum, Nehru’s reasoning represented almost an inversion of the constitutional order, in the express pursuit of a political agenda.

There were many reasons that Nehru’s views (and the amendment itself) were considered problematic – his timing before the inaugural general election, the use of an indirectly elected, unicameral and provisional parliament to amend a constitution barely fifteen months after its creation, the amendment’s consequences for civil liberties, the disregard for democratic propriety and the need to set good precedents. An alternative cause for discontent was also the widespread belief outside the government that there was no clear and pressing reason for the amendment in the first place. Mookerjee was the sharpest proponent of this view in Parliament, as his reply amply demonstrates. But it was a view shared widely across the political spectrum, from the socialist leader Jayaprakash Narayan to the liberal stalwart Hriday Nath Kunzru to the executive committee of the Federation of the Indian Chambers of Commerce and Industry, and including the President of the Republic, Rajendra Prasad.

Beyond the government, few thought that there was an imminent threat to the new nation’s security. ‘Except those in power, no one else in the country seems to be aware of any threat to the security of the state,’ stated Jayaprakash Narayan in May 1951, ‘and yet these crippling amendments are sought to be made in the name of this danger.’[44] In the case of land reform as well, many doubted the reasons the government trotted out. There was broad and

non-partisan consensus in Parliament and outside on the need for land reform. The judiciary had upheld zamindari abolition laws in Uttar Pradesh and Maharashtra, confirming that in principle, land reform was perfectly compatible with the right to property. No less than the President advised Nehru that it would be more prudent to bring the legislation into conformity with the Constitution instead of ‘taking the very serious step of amending the Constitution’.[45]